

THE CONSTITUTION (FORTY-FIFTH AMENDMENT) ACT, 1980

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Constitution and Amendments

THE CONSTITUTION (FORTY-FIFTH AMENDMENT) ACT, 1980

India

THE CONSTITUTION (FORTY-FIFTH AMENDMENT) ACT, 1980

Act 45 of 1980

Published in Gazette of India on 16 January 1980

Commenced on 14 April 1980

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[Note: The original publication document is not available and this content could not be verified.]

Statement of Objects and Reasons appended to the Constitution (Forty-fifth Amendment) Bill, 1980 (Bill No. 1 of 1980) which was enacted as THE CONSTITUTION (Forty-fifth Amendment) Act, 1980

STATEMENT OF OBJECTS AND REASONS

Article 334 of the Constitution lays down that the provisions of the Constitution relating to the reservation of seats for the Scheduled Castes and the Scheduled Tribes and the representation of the Anglo-Indian community by nomination in the Lok Sabha and in the Legislative Assemblies of the States shall cease to have effect on the expiration of a period of thirty years from the commencement of the Constitution. Although the Scheduled Castes and the Scheduled Tribes have made considerable progress in the last thirty years, the reasons which weighed with the Constituent Assembly in making provisions with regard to the aforesaid reservation of seats and nomination of members, have not ceased to exist. It is, therefore, proposed to continue the reservation for the Scheduled Castes and the Scheduled Tribes and the representation of Anglo-Indians by nomination for a further period of ten years.

2.

The Bill seeks to achieve the above object.

An Act further to amend the Constitution of India.

BE it enacted by Parliament in the Thirtieth Year of the Republic of India as follows:-

1.

Short title and commencement.-

(1)

This Act may be called the Constitution (Forty-fifth Amendment) Act, 1980.

(2)

It shall be deemed to have come into force on the 25th day of January, 1980.

2. Amendment of article 334.-

In article 334 of the Constitution for the words "thirty years"; the words "forty years" shall be substituted.

[The Constitution (Forty-Fifth Amendment) Act, 1980, increased the time of seat reservations for the Scheduled Castes (SC) and Scheduled Tribes (ST) as well as gave the special representation of the Anglo-Indian community in the Lok Sabha and the State Legislative Assemblies for a further duration of ten years, or up to January 26, 1990. Article 334 of the Constitution had originally required the reservation of seats to cease in 1960, but this was extended to 1970 by the 8th Amendment, and the 23rd Amendment extended this period to 1980. The 45th Amendment extended the period of reservation to 1990. The period of reservation was extended to 2000, 2010, 2020 and 2030 by the 62nd, 79th, 95th and 104th Amendments respectively.

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